

The Claremont City Council held a meeting on Monday, November 26, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:00 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski

Absent:

Ward II Councilor Scott Pope

Also present:

Ryan McNutt, City Manager

CITIZEN’S FORUM

No one spoke.

NEW BUSINESS

Discussion with State Legislative Delegation about Legislative Priorities

Council will discuss six bills from the 2018 Legislative Session which the Legislature is considering for further action or has voted in a manner that does not represent Claremont’s best interest. They are SB193, HB413, HB525, SB365, SB446, and HB1706.

Mayor Lovett said Senator Hennessey had another obligation tonight. Representative Cloutier should be here. Representative-Elect Andrew O’Hearne and Representative-Elect Gary Merchant were here. Representative-Elect Walt Stapleton should be here.

Mayor Lovett said the purpose of tonight’s meeting is for the Council to provide guidance to the Reps.

At 6:03 p.m. Mr. Stapleton arrived.

SB193 (Freedom Savings Accounts) establishing education freedom savings accounts for students. Mayor Lovett said Council had submitted a letter in opposition. This issue is about school choice. As written, it will take money away from public education and shift it to private education entities.

Mr. Damren said taking away from education funding is misguided. He urged the vote be in opposition.

Mr. Stone said he doesn't like the idea of parents being hit twice. If they choose to send their child to private school, he doesn't think they should be taxed twice.

Ms. Kier agreed with Mr. Damren.

Mayor Lovett said 340 LSRs (Legislative Service Requests) were submitted. Ten directly deal with school funding. The continual decrease of the stabilization grant is hurting the schools and the City. She referenced an article in the Eagle Times regarding special education costs. It outlines that the federal government is not supporting special education and that puts more pressure on the local and state levels. She suggested to the Reps that a letter be provided from the School Board and City Council to them to go to the Federal Delegation. She agreed with that special education is important, but without the federal support, the state and local levels don't have the resources needed. She said that any continued decrease in funding public education is hurting the community and asked that there be a concerted effort to deal with the Federal Delegation.

Mr. Cloutier said the majority of the House Finance Committee has recommended it for future legislations for next term. He thinks it will be an uphill fight. A similar bill to 193 will be filed next term.

Mr. Cloutier said that special education is 20% funded, but by federal law it is supposed to be 40%. It's never been fully funded. Regarding approaching the Federal Delegation, he would be happy to facilitate. He suggested a letter be sent to Congresswoman Kuster, and Senators Shaheen and Hassan urging them to do all they can.

Mayor Lovett said in addition to providing a joint letter from the Council and School Board to Mr. Cloutier, a letter should also go to the County Delegation.

Mr. Merchant said because of the Presidential election, candidates will be coming through Claremont and they need to hear this from Claremont and other communities throughout the state.

Mr. Stapleton said he has heard that work has been done on the stabilization grant. He will continue to look into it. Mayor Lovett said an LSR was submitted for the stabilization grant, but she didn't know the details. Mr. Stapleton said he was going to Concord tomorrow and will see if he can get information.

Mayor Lovett said there will be an LSR to take away kindergarten and the takeaway is this community cannot afford that.

Mayor Lovett said this community needs to pressure the Federal Delegation to provide the federal support that has been outlined in statute.

HB413 (NH Retirement System) relative to payment by the state of a portion of retirement system contributions of political subdivision employers. Mayor Lovett said the state used to support state retirement, but incrementally it has reduced its support to zero. The City has to pay 100% of the employers' portion. At the last session, it lost by a narrow margin and when a vote was taken to reconsider, it lost by one vote.

Mr. Damren said this has impacted every school district in NH. He believes there ought to be support for legislators' own communities regarding state contributions to the state retirement system. The percentage is not important at this time, but contributions need to start. He urged legislators to start contributions.

Mr. Cloutier said there is another bill, a successor to HB413, that is in and he is a co-sponsor. He hopes to achieve some relief next year. Continuing letters to the legislation is needed. He encouraged other municipalities to also help.

HB525 (Stabilization Grants) relative to stabilization grants for education. Mayor Lovett said that had already been talked about.

SB365 (Subsidizing Biomass/Waste Burning) relative to the use of renewable generation to provide fuel diversity and SB446 (Net Metering) relative to net energy metering limits for customer-generators. Mayor Lovett said there are more LSRs on energy than school funding. The City has established an Energy Advisory Committee. They will provide a recommendation to the Council about whether or not to adopt a policy that is related to renewable energy and whether or not it will be a goal for the entire community or municipally-owned buildings. Council is in the process of adopting an ordinance on tax exemptions for renewable energy. She said the takeaway is supporting renewable energy.

Mayor Lovett said Claremont is part of a municipal roundtable regarding renewable energy. What's been done in Claremont has been spoken about in the state (i.e. solar array at the wastewater treatment plant, Energy Advisory Committee, and moving forward on adopting the tax exemption).

Mr. McNutt said aside from the work being done by the municipality, there are a number of private renewable enterprises that are looking to locate here including the largest solar array in the state. Renewable energy could be very important for Claremont.

HB1706 (Lake Sunapee Public Boat Launch) relative to the construction of a Lake Sunapee public boat ramp. Mayor Lovett said that Lake Sunapee does not have public boat launch as

required by statute. Claremont City Council passed a resolution supporting the Wild Goose Boat Launch and reiterated its support last year. The Governor set up a commission to study the issue. They issued a report and one recommendation was to have NH Fish and Game divest itself of the Wild Goose property and search for another property. The probability of finding one is probably zero. This been going on for 20 years and nothing better has come up. Council submitted a letter asking that if they go in this direction, to include a deadline. She said there has been some discussion about making a public boat launch in the same area as the swimming beach, but there are a lot of safety concerns.

Mr. Cloutier is a member of the House Senate Long Range Capital Planning and Utilization Committee and if he sees CORD trying to transfer Wild Goose, he will oppose it. He is not wild about putting a boat launch next to the state beach, but that may be a start. Wild Goose is probably a few years down the road.

Mayor Lovett talked about three LSRs regarding background checks and the hiring process at the School District and trying to get the Superintendent access to state and federal background checks. What is currently available is not enough. There are three LSRs that are placeholders: 0308 relative to the duty of superintendents regarding criminal history record checks; 0319 relative to criminal background checks for education personnel; and 0332 relative to criminal record checks in the employee application process. She asked that the Reps do everything they can to ensure that a better standard is upheld. It is being worked on with the Federal Delegation to have it considered universally across the nation.

Mr. Stapleton asked about the renewable energy industries coming into Claremont. Mr. McNutt said it is primarily solar. One of the proposals is using waste methane gas from landfills. There is a potential to use waste methane gas in Syd Clarke Park, but without support or subsidies, it is hard to do because of the large capital outlay.

Mr. Merchant asked about RSA 673:7 regarding Planning Board members not being able to serve on other boards. Mayor Lovett said this was discussed some time ago and it is a problem for a City with a population of about 13,000 people. She contacted Cordell Johnston at NHMA who said there seems to be no reason why that was done. The question for the Council was whether there was any reason not to change the statute. There were no objections. Mayor Lovett asked Mr. Cloutier to submit an LSR for this before the deadline. Mr. Cloutier said he will do that.

After discussion about Planning Board Alternates, Mayor Lovett asked Mr. Cloutier to add alternates to that.

Mayor Lovett said the Conservation Law Foundation (CLF) is creating a board of communities dealing with childhood lead poisoning. She asked the Council to confirm whether or not to join. She said she would be happy to act as the Council representative. Council concurred.

Councilors agreed to meet in a non-public session with Pat MacQueen and legal counsel to discuss Mr. MacQueen's report on the City Manager. The meeting will be Thursday, November 29, 2018, 6 p.m. in Council Chambers.

ADJOURNMENT

At 6:59 p.m., a motion was made by Mr. Damren and seconded by Ms. Kier to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council